

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: August 27, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to *see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.*

LINE #	CASE #	CASE TITLE	RULING
LINE 1	26PR202377	THE ANTHONY MARQUES REVOCABLE TRUST	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2			
LINE 3			
LINE 4			

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Calendar line 1**Case Name:** THE ANTHONY MARQUES REVOCABLE TRUST**Case No.:** 26PR202377**INTRODUCTION**

In 2021, settlor Anthony Marques (“Decedent”) executed the Anthony Marques Revocable Trust. Thereafter, he executed two amendments. Decedent passed away in August 2025.

On April 13, 2026, Jason Cervantes, Jerome Cervantes, and Jesse Cervantes (“Petitioners”), the adult children of Sherie Marques, Decedent’s daughter, and trust beneficiaries, filed a petition to invalidate the second amendment to the trust, for financial elder abuse, for return of property, to preclude the use of trust funds to defendant against trust contest, to suspend and remove the trustee, and to compel the trustee to account (“Petition”).

On July 20, 2026, Richard Marques (“Respondent”), the current trustee, filed a demurrer targeting each cause of action in the Petition. On July 23, 2026, Petitioners filed an amended Petition. Currently before the court is Respondent’s demurrer, which Petitioners have not opposed.

DISCUSSION

As mentioned above, after the demurrer was filed, Petitioners filed an amended Petition. Accordingly, the demurrer is MOOT. (Code Civ. Proc., § 472, subd. (a) [plaintiff may file an amended complaint without leave of court and despite the filing of a demurrer until the time to file an opposition to a demurrer has passed]; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054 [the filing of an amended complaint renders a demurrer to the prior complaint moot]; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 [“the filing of an amended complaint moots a motion directed to a prior complaint”].) The demurrer is DENIED for mootness. In the future, moving party is instructed to take the matter the off calendar.